PRO PLAN SUBSCRIPTION AGREEMENT

Infrastructure Monitoring, APM & Log Management

Agreement Date:	January 01, 2025
Contract ID:	DDOG-2025-00142
Vendor:	Datadog, Inc. | 620 8th Avenue, 45th Floor, New York, NY 10018
Customer:	Acme Corporation | 1600 Technology Drive, Halifax, NS B3J 1N9
Effective Date:	January 01, 2025
Renewal Date:	September 30, 2025
Contract Term:	9 months (January 1, 2025 – September 30, 2025)
Auto-Renewal:	Yes – 60-day written notice required to cancel
Notice Period:	60 days written notice required
Contract Value:	$6,800.00 USD / year
Pricing Escalation:	5% annual increase; host-count reviewed at renewal

1. Scope of Services

Datadog, Inc. ("Vendor") agrees to provide Acme Corporation ("Customer") with access to the following services and licensed products for the Engineering department under this Agreement:

- Infrastructure Monitoring — up to 50 hosts
- APM and distributed tracing included
- Log Management: 30-day retention, 100 GB/day
- Synthetic monitoring: 10,000 test runs/month
- Dashboards, alerts, and SLO tracking
- Dedicated Customer Success Manager

2. Fees & Payment Terms

The total annual contract value is $6,800.00 USD, invoiced annually in advance on the Effective Date of each contract year. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes.

Pricing escalation terms: 5% annual increase; host-count reviewed at renewal.

3. Auto-Renewal & Cancellation

This Agreement will automatically renew for successive 12-month periods at the then-current pricing plus the applicable annual escalation rate, unless either party provides written notice of non-renewal at least 60 days prior to the Renewal Date.

Cancellation notice must be submitted in writing to billing@datadoghq.com and acknowledged in writing by Vendor to be effective. Customer remains liable for fees through the end of the current term regardless of cancellation.

4. Service Level Agreement (SLA)

- 99.9% platform availability
- 24/7 enterprise support
- P1: 1-hour response, 4-hour resolution
- Status page at status.datadoghq.com

5. Data Security & Privacy

Vendor will maintain SOC 2 Type II and ISO 27001 certifications throughout the term. Customer data is encrypted in transit (TLS 1.2+) and at rest (AES-256). Vendor will notify Customer within 72 hours of any confirmed data breach affecting Customer data. Data handling complies with applicable Canadian privacy legislation (PIPEDA / provincial equivalents).

6. Key Terms & Conditions

- Intellectual Property: All Vendor software, documentation, and derivatives remain the exclusive property of Vendor.
- Confidentiality: Both parties agree to maintain strict confidentiality of proprietary business information for 3 years beyond termination.
- Limitation of Liability: Vendor's aggregate liability shall not exceed the total fees paid in the 12 months preceding the claim.
- Governing Law: This Agreement is governed by the laws of the State of New York, USA.
- Dispute Resolution: Disputes shall first be escalated to executive sponsors; unresolved disputes proceed to binding arbitration.
- Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.
- Assignment: Customer may not assign this Agreement without prior written consent of Vendor.

7. Signatures

By signing below, both parties agree to be bound by the terms and conditions of this Pro Plan Subscription Agreement as of the Effective Date stated above.

FOR DATADOG, INC.

Chris Patel
Enterprise Account Executive
Datadog, Inc.
January 01, 2025

FOR ACME CORPORATION

Marcus Reid
Chief Financial Officer
Acme Corporation
January 01, 2025